Shrawan Kumar Verma vs State Of U.P. And Another on 4 December, 2019

Author: Pradeep Kumar Srivastava

Bench: Pradeep Kumar Srivastava

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 55

Case :- CRIMINAL REVISION No. - 1044 of 2010

Revisionist :- Shrawan Kumar Verma

Opposite Party :- State of U.P. and Another

Counsel for Revisionist :- Ramesh Rai

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Pradeep Kumar Srivastava,J.
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Heard Shri Ramesh Rai, learned counsel for the revisionist, Shri R.P.S. Kushwaha, learned AGA for the State and perused the record.

This revision has been filed against the judgement and order dated 11.12.2009 passed by the Judicial Magistrate, Kushinagar at Padarauna in Criminal Case No. 410 of 2008 (Smt. Kiran Verma Vs. Shravan Kumar Verma) by which the learned Magistrate has awarded a maintenance of Rs. 1500/- to the wife opposite party no. 2 under section 125 Cr.P.C.

Aggrieved by that order this revision has been filed.

The submission of learned counsel is that it is admitted fact between the parties that both were husband and wife and divorce took place by order of Family Court, Gorakhpur in petition no. 95 of

2003 (Srawan Vs. Kiran) by order dated 19.02.2008. The submission of the learned counsel is that the said divorce was granted in favour of the husband on the basis of cruelty attributed to the opposite party no. 2.

What ever the case may be, section 125 Cr.P.C. makes the divorced wife entitled for maintenance from her ex-husband provided she is not living an adulterous life and she is not competent to maintain herself.

It appears that in the application under section 125 Cr.P.C., the wife alleged dowry harassment on the part of the husband and his family members and cruel treatment leading to abortion. She has further alleged that the husband himself was inclined to give divorce to her and he closed all the doors for amicable settlement. She was forced to live with her parents and the husband refused to pay her maintenance.

So far her living separately is concerned, it is become insignificant as the admitted fact between the parties is that both of them are divorced, therefore, there is no question of wife living with the husband. The wife has alleged that she has no income and she is not able to maintain herself. There is no evidence on record on the basis of which it could be said that the wife was capable and she was earning.

The purpose of the law under section 125 Cr.P.C. is to prevent destitution and to provide speedy remedy to deserted or divorced wife who is not able to maintain herself.

It appears from the perusal of the impugned judgement that the learned trial court has awarded only Rs. 1500/- per month as maintenance which is much in lower side and there is no reason for the revisionist be aggrieved by them.

The learned court has determined that the revisionist husband has admitted that he worked with her elder brother in management of School and they run a school together and he also did teaching job in that school. In the written statement itself the revisionist husband has admitted that he has working in private Montesari School. He has enough agricultural land and the learned trial court came to a conclusion that his husband is financially equipped and is able to maintain opposite party no. 2. It has also been pointed out by the learned court below that the husband did not produce him for completing his cross-examination as such the learned court below has rightly concluded that no evidence was given by the husband in his favour in order to contradict or rebut the allegations made in the application. In view of the above the maintenance order was passed.

I find no material illegality and irregularity or any jurisdictional error in the impugned judgement, the revision lacks merit and therefore, is dismissed.

Order Date :- 4.12.2019 Bhanu